

Shamshad Ahmad v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 20 April 2023 · Writ-C No. 12199 of 2023 · **Petition allowed with Rs. 10,000 costs; citation withdrawn.**

HEADNOTE

A tehsil recovery citation of Rs. 1,00,407 for alleged theft could not stand where the consumer's objection to the provisional assessment was undecided and no final assessment order existed. Licensee's counsel admitted that fact and stated that the citation dated 25 November 2022 had been withdrawn. Treating recovery without a final assessment as contrary to Clause 8.1 of the Electricity Supply Code, 2005, and as a recurring cause of harassment, the Court allowed the writ with costs of Rs. 10,000 adjustable in future bills and recoverable from the concerned officer, and directed communication of the order to the DISCOM Managing Director.

FACTUAL SUMMARY

Shamshad Ahmad, holding a 2 kW domestic connection, had obtained a consumer-forum direction in March 2017 for a tubewell connection plus damages and costs. He says officials then implicated him falsely: an FIR on 24 April 2022 and a provisional assessment notice on 11 May 2022. He objected on 16 June 2022. Without deciding the objection, the department raised a demand and, during his Permanent Lok Adalat complaint, sent a recovery certificate to the Tehsil. Citation dated 25 November 2022 sought Rs. 1,00,407 for alleged theft.

REUSABLE CONSTRUCTIONS

1. A tehsil recovery citation for alleged theft is illegal under Clause 8.1 of the U.P. Electricity Supply Code, 2005, where the consumer's objection to the provisional assessment remains undecided and no final assessment order exists. ¶ 3,5-6
2. Withdrawal of such a citation after the consumer has come to Court does not end the writ; the petition may be allowed with costs adjustable in future bills, which the licensee may recover from the officer responsible. ¶ 6-8

HOLDING-UNITS

HOLDING-UNIT · UP-2005::8.1

Theft recovery without a final assessment order

HOLDING

Recovery for alleged theft cannot proceed by a tehsil citation when no final assessment order exists and the consumer's objection to the provisional assessment has not been decided. That course violates Clause 8.1 of the Electricity Supply Code, 2005. Counsel for the licensee admitted there was no final assessment and that the citation dated 25 November 2022 had been withdrawn. The Court, noting that assessing authorities repeatedly issue recovery certificates without a final assessment and thereby harass consumers, allowed the petition with costs of Rs. 10,000 to be adjusted in future bills, left the department free to realize that sum from the concerned officer, and directed the Registrar (Compliance) to communicate the order to the Managing Director of the DISCOM. ¶ 3,5-8

PRINCIPLE TAGS

no-recovery-without-final-assessment-clause-8.1(b) The objection of 16 June 2022 was still undecided when the department forwarded a recovery certificate and the Tehsil issued the citation of 25 November 2022. Counsel admitted that no final assessment order existed. The Court treated that recovery as contrary to Clause 8.1 and allowed the petition with costs even though the citation had been withdrawn. ¶ 3,5-7

NOT DECIDED — WHETHER THE PETITIONER HAD COMMITTED THEFT, AND WHETHER A FINAL ASSESSMENT SHOULD STILL BE MADE

The writ was allowed because no final assessment existed and the citation had been withdrawn. The Court did not try the theft allegation or direct a fresh assessment. ¶ 5-7

SCJ-3424 · Shamshad Ahmad v. State of U.P. · · Supply Code Jurisprudence

A jurisprudence extract prepared from the text of the judgment; not a substitute for the judgment, and to be verified against the original before use.